

bill approved by the governor or passed over his veto by a two-thirds vote, it may require a four-fifths vote, or a unanimous vote, or may provide that no apportionment shall be valid unless approved by the governor. Some of the best minds of the country in the legislative halls and constitutional conventions have spoken against any such power in the State. Election, West Virginia, Forty-third Congress, I Hind's Prec., 653, 654; Massachusetts Constitutional Convention of 1820, per Story, J. (see Journal in Cong. Library); per Webster, I Hind's Prec., 653; Election case of *Baldwin v. Trowbridge*, 2 Bartlett Contested Election Cases 46, 38th Cong., Rep. No. 13; *Schrader v. Polley*, 26 S. D. 5; *Shiel v. Thayer*, 2 Bartlett 349, Cong. Globe, 1st Sess., 39th Cong., pp. 815-823; *Sapp and Carpenter Cases*, H. Rep. No. 19, 3d Sess., 46th Cong., I Hind's Prec., 672, I Ellsworth, p. 322; *Davidson v. Gilbert*, 56th Cong., I Hind's Prec., 180; *Perkins v. Morrison*, Rep. No. 3, 31st Cong., 2d Sess. See also Cong. Rec., vol. 47, 67th Cong., 3436-7, 3507.

Resort to the doctrine of practical construction, if proper at all in the case at bar, does not support the contention that "legislature" in § 4 of Art. I means State. A practice that was wrong should be rejected, *Wendell v. Lavan*, 246 N. Y. 115; *People v. Tremaine*, 252 N. Y. 27; *Louisville & N. R. Co. v. Kentucky*, 161 U. S. 677, 690; *Cooley*, Const. Lim., 6th ed., p. 85.

The Act of August 8, 1911, c. 5, 37 Stat. 13, was limited to the apportionment therein made and expired with the apportionment under the Act of June 18, 1929.

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*Messrs. John Godfrey Saxe, Robert F. Wagner, and John J. O'Connor* were on the brief for Farley, respondent.